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PROPERTY RIGHTS AND FUNCTIONAL TENURE IN MESOPOTAMIAN RURAL COMMUNITIES

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No one has done more than Professor Diakonoff to deepen our understanding of the major socioeconomic undercurrents in ancient Mesopotamian society, as well as to sensitize his colleagues to the many lines of indirect, sometimes ambiguous evidence that must be drawn together from diverse sources in order to expose them to view at all. Hence it may be not inappropriate to honor him by seeking to cast a net over a portion of one of his own favorite subjects, but with somewhat different intent and from an unfamiliar direction.

Diakonoff has succinctly identified a major feature of his theoretical approach as the distinguishing of social classes from one another on the basis of their differing socio-political interests. Contributing to these differences, he maintains, are historically conditioned differences in access to means of production, different roles in the social organization of labor, and of course ensuing differences in wealth. For the third and early part of the second millennia B.C. he sketches an admittedly generalized picture in which an upper stratum of citizenry derived its living primarily from a much larger mass of "slave-type dependent persons" while between these two sharply opposed (if not necessarily or equally self conscious) groups there survived a class of freeholding peasants subsisting largely on the produce of their own labor. Others have taken issue with him over whether it is proper to group chattel slaves and technically free, not wholly propertyless laborers in the state sector within a single category. Different levels of generalization are useful for different purposes, and there is little to be added by reconsidering in the abstract the respective advantages of tripartite and quadripartite schemes of social stratification. In a sense anterior to the contention over this issue is a doubt over the grounds on which it has been based. I believe it is fair to characterize its main focus hitherto as having been the concept of formal ownership of the means of production, and above all land, rather than the broad relationship of forces within the society at large.[1]

The difficulty with the narrower concentration of interest is that the idea of property, no less in land than in anything else, is itself only to be understood as a historically conditioned social construct. Access to and control over property has always been conditioned by successive accretions of rights and obligations that may survive or be altered only slowly according to the at least partly autonomous dynamics of all conceptual systems. Some of these accretions originate in local custom or in prevailing patterns of kin loyalty, with shadings of moral or legal authority introduced by the rich diversity of oppositions and alliances that go on within any generalized set of norms. Others set the interests of the individual or his family off against those of all or part of a community, while still others involve individuals, families or communities with the supervening powers of the state. But behind the misleadingly unifying facade of codes and constitutions, the whole corpus of such accretions cannot constitute a harmonious, balanced system of legal precepts together with their applications. That would seem to be a fairly neutral historical generalization, but should be particularly apparent to anyone who views contending classes as the driving force of

change and hence recognizes that no society can remain a smoothly functioning, timeless equilibrium.

To make ancient principles of property most salient in the study of class stratification is, I suggest, to risk losing sight of the changing complexities of historical reality by following normative definitions that may have a trajectory of their own. Diakonoff's upper stratum (and the state institutions with which it must have come into being in an interactive process) indeed found it expedient to codify and cite prescriptive principles. Much less clear, however, is how widely and uniformly such principles ever prevailed. Taken for granted in both private and official transactions was a wider context of social relationships that surely always exercised an important, often decisive influence on their outcome. Recorded rights and obligations were only parts of a much larger spectrum of relationships that was mostly not recorded, selected according to criteria that were never made explicit. As Miguel Civil has recently put it,

> ...il y a des renseignements, souvent essentiels pour la solution de nos problèmes, qui ne figurent pas dans les textes non parce qu'ils n'étaient point *perçus* par les scribes mais tout au contraire parce qu'ils étaient *trop connus* des scribes.... Une conclusion assez pessimiste s'impose: plus un fait culturel se situe près du noyau central d'activités humaines, moins il y a de chances qu'il apparaisse dans les textes.[2]

What is perhaps most importantly and pervasively missing is an acknowledgement of the relative power, extending far beyond any specific relationship or transaction, of members of social elites to impose their will on inferior social segments or even on one another. Lacking this, all too often discouragingly little can be said in other than stereotypical terms about the attribution of motives to actions, and hence about the interplay and selection between alternatives. And without this, little real social depth can be detected, leaving us with testimony more pertinent to the elaboration of a series of stylized chronicles than to history as an interpretive and explanatory undertaking.

One approach to overcoming these difficulties proceeds primarily from the analysis of variant practices and terminology directly attested to within the textual corpus. Ultimately Assyriologists will no doubt overcome many present ambiguities in this fashion, of course to some extent depending on the recovery of more and more broadly representative bodies of documentary evidence. But much more problematical is a determination of the role of the largely silent mass of Diakonoff's lower social strata from purely documentary sources. Archaeological data is potentially more helpful in this respect, although the potential will not be realized until this is more widely acknowledged among my archaeological colleagues as a central responsibility. But also of some slight help can be a consideration of the conditions of life and forms of association of the working agricultural population of other places as well as periods, in order to take advantage of types of documentation for which there is as yet no cuneiform parallel.

Let us first briefly consider the frequently associative character of peasant village agricultural holdings, which are not necessarily to be identified with the more formal, state-recognized features of land tenure systems. The classic form of communal systems of this type, at least in terms of its recognition and intensive study by historians, is the "open field" village agriculture that, together with the manorial domains exercising control over most of it, was dominant in much of western Europe throughout the medieval period.[3] Recently this has begun to receive the attention of a new "cliometric" group of economic historians who are prepared to do battle with the rich manorial data (and with one another) by invoking a sophisticated, sometimes even explicitly "counterfactual" battery of assumptions and quantitative methodologies. Naturally, I do not imply that historical, social and environmental conditions in the two world regions were so similar as to justify any uniformity of explanation. Two premises common to the cliometricians working on this problem may further limit the wider applicability of their findings. One is that medieval peasants' behavior can be adequately understood by regarding them as "selfish", knowing, rational, entirely economically motivated individualists. Second, the present group of investigators seems to hold that the role of the larger political system may be assumed (at least over the long run) to have been static, benign, and in any case ultimately irrelevant. Most of us would regard these as crude, first-order approximations at best. Even to a skeptic, however, they have indeed been made to serve as the founding hypotheses of an explicitly deductive, quantitatively testable approach that persuasively organizes and interprets much of the available data and that promises yet further insights. Hence the findings are useful in identifying various features of an explanatory model that should apply to communal systems of cultivation and tenure more generally.

Two principal positions have been enunciated, regarded as to some degree antithetical by their protagonists but for present purposes potentially complementary. One holds that there were prevailingly low yields, unpredictable weather, high variability in soil fertility due to such problems as poor drainage, high losses associated with storage, very limited and high cost facilities for transporting agricultural surpluses over any distance, poorly developed futures markets, and limited as well as expensive access to credit on the part of cultivators. Associating at least some modest cost with any scattering of individual plots of land within larger, communally held "open fields", this position seeks to demonstrate that the dominant factor in the dispersal of plots must have been a reduction of the risks to the individual from those forms of disaster that were strictly localized. The second position sharply challenges some elements of the earlier one, arguing in particular that there was greater reliance on storage as a means of risk aversion and that fluid exchanges of credit within a peasant community could serve the same end. Further, the second position credits positive advantages to field dispersal, outweighing additional costs for time lost in transit between plots. These are said to have taken the form of improvements in the scheduling of agricultural activities throughout the year, since scattering meant that sowing, cultivating and harvesting times could be somewhat staggered rather than simultaneous.[4]

The applicability of considerations like these to any type of traditional agriculture, the Near East included, is reasonably apparent. True, there are obvious differences. Climatic unpredictability in Europe would be moderated in Mesopotamia by the use of irrigation, although there is no lack of other -- human as well as natural -- elements of unpredictability in irrigation. Storage, too, assumes a somewhat different aspect in a region with fallow land available for forage and without harsh winters to decimate herds. Near Eastern pastoralism surely must be understood at least in part as a form of capital investment that could smooth the effects of crop fluctuations. In general, however, the factors held uppermost in the medieval debate are ones that surely also deserve close attention when we turn to the ancient

Orient. Some, like scheduling, may even take on greater force when considered in connection with the periodicities of an irrigation regime than they seem to have in medieval Europe. What is most obviously missing, as we shall see presently, is a place in the cliometricians' system for what economists might call political "externalities".

Elegant as the cliometricians' models are in other respects, their use with different sets of measured variables is made exceedingly difficult by disparities in the available data. The voluminous cuneiform sources simply fall short of the standards of medieval record-keeping (at least from the thirteenth century onwards) in comprehensiveness. There is less emphasis in manorial records on purely routine transactions, and more on fully listing holdings, rents, services, annual yields, disbursements, and even some descriptive information on the tenantry. With some proceedings of manor courts also available to shed additional light on the latter, the relations of feudal or monastic superiors to communities of cultivators hence can be relatively more fully and clearly specified. Not all of this may lie permanently beyond the reach of Assyriologists, to be sure, but for the present the differences are substantial. How then can we come to grips with what may have been Near Eastern equivalents for opportunities and constraints in communal agriculture like those that can be dealt with directly in medieval Europe? One way is to use relatively recent, much more adequately documented conditions in the Near Eastern countryside as a point of departure. My primary field of geographic concern in doing so is obviously southern Iraq, although ampler data from adjacent areas is necessary to supplement what can be said of the Mesopotamian alluvium in recent times. The relevant temporal span begins roughly in the mid-nineteenth century, and terminates with the massive reforms and land redistribution that followed in the wake of the revolution of 1958.

Apart from the sustaining areas immediately surrounding the main towns of the time, the mid-nineteenth century pattern of landholding was based on a tribal territory or *dira* within which tenure was for the most part regarded as held in common. Sections might be set aside to be cultivated on behalf of the paramount tribal leadership or for heads of tribal divisions, but these attached to the responsibilities of their offices rather than to themselves or their immediate families as persons. Some prescriptive rights also were connected with orchards, water lifting machinery, and other forms of capital improvement, but it must be stressed that the prevailing insecurity of the times discouraged such improvements. Irrigation was of course essential for agriculture, but it was prevailingly of a localized, small scale character that could be abandoned under military pressure (from other tribes or Ottoman authorities) and replaced at little cost. Plots under cultivation within the *dira* were continually shifted, in response not only to the diversions and interruptions characteristic of a wholly acephalous system of water control but also to the greater attachment of the bulk of the population to fighting in support of tribal interests rather than to agriculture. Yet for all of the insecurity and lack of consistent economic advance associated with these chaotic conditions, it must be recognized that this type of social and subsistence system was at least a highly flexible or resilient one. It permitted, if only at low population levels, rapid adaptation or recovery of its constituent tribal groups in the face of a wide variety of severe ecological pressures.[5]

Little need be said here in detail of the formal categories of land ownership that were recognized by the Ottoman authorities. The land code of 1858

envisioned the vesting of permanent *tapu* rights on all those who had settled and cultivated the *miri* or state domain, but explicitly forbade communal tenure. This proved largely inapplicable in the vast areas still under tribal control. Sufficient continuity of settlement and use to meet the terms of the Code could seldom be demonstrated by individual cultivators. Tribal shaykhs, since they were not themselves cultivators and since their claims were merely those of the tribes they represented, also had difficulties in proving their eligibility. Moreover, the prevailing mistrust between the tribes and the Ottoman government, coupled with well justified fears of conscription and other forms of governmental encroachment, forestalled any general movement by the shaykhs toward purchasing these rights. Hence the primary acquisition of them was by townsmen, who in effect speculated on finding a profitable niche between the tribes and the government. Subsequent to the departure of Midhat Pasha as Governor of Baghdad (1869-71) all efforts to transfer land titles to occupants were simply abandoned in favor of a more passive (as well as more profitable) policy of state landlordism on the remaining four-fifths of the cultivable terrain. Clearly, the formal patterns of ownership that emerged from this process reflected a shifting, heterogeneous relationship of forces, and they are further obscured by the "absolute confusion and anarchy" reigning in the departments responsible for Ottoman land survey and registration.[6]

More important for present purposes is the informal, unrecorded pattern that prevailed throughout the region. Great estates generally were leased by the shaykhs from the state institution or private individual with some semblance of title to them. Subdivisions of these, called *qit'a*, were the primary operational units. In strong, centralized tribes the paramount leader might retain considerable authority over tribal sections occupying individual *qit'a*. Elsewhere subordinate shaykhs came independently to terms with title holders. In the detribalized sustaining areas around the major towns the title holders increasingly undertook to operate their own estates independently, acting indirectly through subordinate agents or managers. Agricultural activities there were of course carried on by fellahin on a sharecropping basis. Where the *qit'a* holder and the cultivators formed a single tribal unit, they were bound together by a complex, reciprocal set of military and social as well as economic obligations that could not be readily broken. At the other end of a fluid continuum of disintegrating tribes, easily ruptured, essentially contractual relations prevailed in the vicinity of towns between fragmented, rootless groups of fellahin and shaykhs whose functions and social position had become those of private landlords.[7]

Had other conditions held constant, it might have been expected that the decay of tribalism would continue in the years after World War I. Improvements in the technology of communications worked toward this end, as did the strengthening of the government's capacity to extend at least some aspects of its administrative apparatus into the countryside. Less directly, changed world conditions that greatly accelerated the growth of towns had the same effect. By creating urban and foreign markets for agricultural products, they increased the incentives for shaykhs to adopt the stance of private landlords rather than tribal leaders. Yet there were powerful sociopolitical considerations of a very familiar, traditional kind that counteracted this seemingly "natural" trend, and that continued to prevail not only under the British Mandate but under the monarchy that succeeded it. An imposed government without a secure and well established base of regional or popular support found a readier community of interest with the great landed shaykhs

with some remaining claims on their tribal followers than it could identify with any other group of remotely comparable influence. The shaykhs helped to strengthen the chain of authority, moreover, by which additional revenues could be extracted from the by no means docile countryside. As early as 1919 the terms of the alliance were clearsightedly set forward by the Revenue Commissioner: "We must recognize that it is primarily our business not to give rights to those who have them not, but to secure their rights to those who have them." Even earlier but along similar lines, a Political Officer had written that his policy was to "go straight for getting the power in each tribe into the hands of one man". Thus it was that the four decades ensuing after World War I saw not the devolution of tribal tenure into more atomistic, private patterns of ownership but instead "the growth of a new *commercial* shaikhly semifeudalism".[8]

Such developments obviously found some reflection in urban record-keeping. Yet the level at which they occurred was largely detached from peasant life in the villages and the routine associations involved in the conduct of agriculture. It has already been noted that there was a screen of intermediaries between holders of formal titles and the cultivators. Sometimes this was composed of lesser shaykhs still primarily linked to the cultivators, while at other times it was composed of agents acting primarily on behalf of the owners in dealing with sharecroppers or hired laborers. What lay on the further, rural side of this screen was at or beyond the peripheries of urban interest and competence. In particular, local arrangements for the allotment of land to cultivators, the concrete articulation of the formally recognized large holdings with agricultural production, seem to have largely escaped any substantial administrative attention. That had to await the arrival upon the scene after World War II of specialists with an entirely unprecedented set of objectives, including both planners of agricultural development schemes and anthropologists.

What emerges from a number of reports of these latter kinds is the existence of a system of periodic land redistribution, not infrequently coupled with the scattering of individual parcels of land within larger holdings that are partly worked in common. An account of agricultural practices along the Hilla branch of the Euphrates and the Daghara canal, for example, refers concisely to tenants having

> ...received a piece of land every year. The landowner decided which part of his property would be cultivated in a definite year. Under supervision of the representatives the tenants organized a ballot as a result of which equal pieces were allocated. In this allocation waste and idle lands were not considered.[9]

On the other hand, a much fuller anthropological account of a particular town and its hinterlands in the same region describes a different as well as a more differentiated picture. Only a small proportion of the cultivable land around Daghara was registered jointly in the names of all of the members of a particular tribal section, and this especially included date orchards. Most commonly fields were also jointly owned, but only by brothers or by brothers and patri-cousins together rather than by larger agnatic groups. And there were numerous individual holdings, which in fact were regarded as preferable. Joint ownership in this case was a strategy for maintaining units large enough to cultivate through successive generations of fractionating inheritance, as well as for assuring access to irrigation water across a checkerboard of adjoining fields. The data appear to be

limited, however, to tribally organized freeholders enjoying a stability of tenure that would have been rarely if ever attainable by their ancestors in Ottoman times. Moreover, information is not available on how fields were allocated among others of the same shaykh's tribal followers who had been reduced to the status of sharecropping tenants on his own lands. Preferences for individual ownership do not, in any case, overcome pressures that continually force most of the group in the opposite direction. As the anthropologist observes, "owners must do the best they can with the land they inherit or are able to purchase; micro-variations in population densities throughout the region cannot be accommodated through expansion or contraction of tribal holdings".[10]

A partial transition toward parcelling of land among tenant tribesmen has been attested in the southern Mesopotamian marshes. Its circumscribed extent is suggested in one published account by the fact that the *sirkal* of the clan in question had 350 cultivable (and 2,750 uncultivable) hectares of land at his direct disposal (through lease of state domain lands) while assigning less than thirty hectares to members of his own clan in return for a third of their crop. In this case,

> The cultivating unit is usually the family. Sometimes two or more families, usually of one lineage, cultivate jointly, sharing the seeds and the crop. Frequently, a lineage may cultivate jointly. If so, they may share according to the number of *habil* (0.25 ha.) cultivated by every family, the money spent and the crop produced. Clans tend to hold adjacent patches of land, usually near their dwelling islands. In the days of the feudal shaikhdom, the lineages received land direct from the shaikh and no doubt their corporate solidarity was derived from this as well as from other institutions. To-day lineages or clans (except one) have no corporate rights to land. Inheritance is from father to son.[11]

Stability of tenure among cultivating families in the foregoing cases is clearly related to the ties of tribal solidarity that continue to exist between them and the shaykh or his representative, the holders of formal title. As specifically noted for the southern marshmen, "the user cannot be evicted unless he has failed to cultivate or to pay the *sirkal's* share" and can mortgage, share and even sell his right of occupancy. Conditions were quite different among sharecropping tenants in detribalized areas. In such an area on the lower Diyala plains east of Baghdad, for example,

> At present (this was in 1956) the sharecropping system does not provide for the tenant receiving any specific block of land, since he is moved about from field to field each season according to the pattern of the fallow rotation and the random method of allocating land at the beginning of each new season. This method, which consists of allocating to a tenant several strips of land, each individual locality being chosen by lot, is useful in so far as it ensures that the tenants on a property have more chance of receiving a fair proportion of the better land.[12]

Fuller details (including mapped holdings) are available for a village near the right bank of the Tigris, between Baghdad and Kut. A local shaykh "organizes all agricultural production, determines what crops shall be grown in which fields, allocates the land to the cultivators, owns the water pump and pays for its maintenance, taking in return a half share of all crops grown.... The size of the area allocated to each family depends on two main factors, primarily the working capacity of the family, secondarily the

needs of the family. The number of strips into which the total area is divided and their size depends upon the importance put upon ensuring a fair distribution of good and bad land between families".[13] It cannot be concluded, however, that this process of subdivision of plots is limited in its application to tenant farmers only. Another well documented example refers to an extended family of freeholders owning more than 70 irrigated hectares:

> The distribution of land among the farmers, even though they are all relations, follows the same pattern as in other holdings in the area... Each field...is devoted to a particular crop, and subdivided among the cultivators, into strips. Sometimes each cultivator merely has one strip in each field; sometimes the field is split up into blocks and each cultivator has one strip in each block. This system has striking similarities to the old English open-field system. In this particular village this system appears to have reached an extreme situation. The fields are divided up into blocks of approximately 1½ acres (0.6 ha.) in size and each block is subdivided into three strips; the sheikh's son Hassan has one, rather larger than the other two, which go to his brothers, Hussein and Karmel. The sheikh himself farms an occasional strip at the ends of the fields.
>
> The unit of measurement is the local long-handled digging shovel (*mishah*) some 6-8 ft. (2-2½ m.) long, the width of the block corresponding to approximately 20 handle lengths, 8 of these going to Hassan and 6 each to Hussein and Karmel. The object of this elaborate subdivision is to ensure that each person gets an equal share of the good and bad land.[14]

The pattern encountered here is immediately recognizable as a variant of the *musha'* system of common village tenure, widely known during the late Ottoman period in Syria and Palestine and persisting on a diminishing scale thereafter. Unrecognized in Islamic law as a prescriptive system, its essential features also included periodic reallocations of land to equalize the cultivators' risks and opportunities. The basic allocational unit, named after a yoke of oxen or *faddan*, was the amount of land such a team could plow in a day.[15] *Musha'* villages generally were to be found in transitional areas between fully sedentary, intensively cultivated regions around the larger towns and regions further to the east that were given over to pastoral nomads, and there is some evidence that reallocation occurred most frequently where adequate precipitation to support dry agriculture was most problematical. Larger tribal groupings were little in evidence, but highly fragmented communal fields are described as having been jointly cultivated by *hamula* or clan members whose village residences also tended to coalesce into separate quarters.[16]

The details of the *musha'* system are not of further concern for present purposes. Most of the documented examples of it are geographically as well as culturally distant from southern Iraq, and are found in particular under conditions of dry agriculture rather than irrigation. Yet there are persuasive similarities in the broadly adaptive strategy to which the same institution contributed in contrastive settings. Most immediately apparent to those who have described the system (because this was uppermost in the minds of their informants?) is the equalizing of risks and opportunities. Levelling mechanisms of this kind have much in common with attributes regularly found in what elsewhere have been termed "closed corporate peasant

communities".[17] Their essentially defensive functions, in so-called dual societies with central governments exercising repressive control over large, subordinate and impoverished groupings of their subjects, must include helping to maintain the internal solidarity of the latter as a contribution to their common productive needs and even survival.

Yet there is more to be said of the specific adaptive features of *musha'* villages. A recent, comprehensive analysis of them[18] points out that communal tenure served effectively for a time, in the wake of the enactment of the Ottoman Land Code but surely also earlier, as a strategy of resistance to the state. In particular, it permitted withdrawal, at some cost that could only be met by an institutionalized pattern of sharing that involved the whole community, from the threats of predatory tax-farming and conscription that were concentrated in better favored, intensively settled areas. The *musha'* pattern also was associated with a careful balance between pastoral and agricultural activities, preserving herding as an alternative mode of subsistence that could be fully supportive during times of crop failure. Both of these features were also of vital importance in the Iraqi setting, although agricultural failure there was linked to the undependability of stream flow and an anarchically maintained irrigation system rather than to variations in rainfall.

At least in Palestine, the *musha'* strategy must be described as ultimately having failed. Land registration through surrogates and other forms of evasion eventually led to the control of titles not by villagers but by Ottoman officials and urban notables. Large estates were assembled on this basis in the early years of this century, the process gradually spreading outward from the larger towns. All that survived for a time under the new conditions were the traditional methods of rotating land allocation and joint cultivation. In the end, rising market pressures led to the replacement of these too by more rationalized field patterns and other forms of intensification.

However, it should be mentioned that there is at least one strikingly different variant to this process of devolution under the special challenges imposed by modern conditions. Turkmen nomads who settled on the Amik (Amouq) plain in what is now Turkish Hatay in late Ottoman times are today found divided into what another anthropologist has called core and fringe villages. While these physically resemble one another, the fringe villages, like the *musha'* villages of Palestine, have tended to become socially heterogeneous and to lose control over their lands to outside groups and urban landlords. The core villages, on the other hand, have prospered and increased the lands under their control. What distinguishes the core villages is that they form highly endogamous, corporate units, each built around a strong lineage. Two related strategies apparently contribute to this successful outcome. Internally, egalitarianism is limited to the dominant lineage; others are forced into out-migration or into a dependent, sharecropping status. Externally, the leadership in the core villages has forged effective, vertically oriented alliances with urban officials and notables. Probably the strength and durability of these alliances is only explainable on the basis of the consolidated wealth and power of the core villages themselves, but in any case it has enabled them to withstand repeated government efforts to force the issuance of individual land titles and to stabilize rotation. At least under some circumstances, in other words, a *musha'*-like strategy apparently can serve not merely as a passive

and transitory defense against urban powers but as a more positive and effective response that, beyond survival, even allows expansion and upward mobility.[19]

It is not surprising, in light of these diverse forms of adaptive potential, that various patterns of plot subdivision and reallocation, coupled with a sharing of some cultivation responsibilities by corporate groups, are very widespread in the Near and Middle East. Lambton has catalogued the variant terminology and practices that are found in Khuzistan and all across the Iranian plateau, with the basic term, *juft*, again referring to a yoke of oxen. A particularly full description of local variants is available for the plains around ancient Susa, where both the voluntarily formed groups of tenants and the land they subdivide and cultivate on two- or three-field rotation systems is referred to by the term *bonku*.[20] However, none of this variability can yet be related to differing environmental or historical opportunities and constraints. Hence it serves here merely to underline that communal forms of *de facto* tenure, as distinguished from whatever forms of titular ownership of land may be formally recognized by law, are surely a very ancient, complex and widely occuring institution. They deserve to be taken fully into account in any reconstruction of early Mesopotamian agriculture.

Professor Diakonoff is of course in the forefront of those who in recent decades have made impressive progress toward such a reconstruction. His designation of what he combines to call a "communal-and-private sector" aptly alludes to the fluid continuum between these conceptually distinct forms, corresponding to the recent conditions that have been described above. His primary concern, however, has been to identify the substantial place of this sector in Mesopotamian society of the early and mid-third millennium, although he acknowledges that family communes and other types of corporate communities continued to exist in the Babylonian countryside through the second millennium as well. Thus his general conclusion is that the communal element in this combined sector progressively declined from the terminal third millennium onward, being

> gradually superseded -- at least in the cities -- by individual households, the process starting in the richer strata of society. The communal property rights became more and more dormant, and the process of development tended apparently toward the formation of individual private property.[21]

The foregoing sections of this paper prompt two reflections on this generalization. First, Diakonoff's caveat that the replacement of communal by individual forms of tenure may have been largely concentrated in the cities, unfortunately still the sources of almost all of the evidence, is clearly an essential one. Second, it is once again worth noting with some concern that his focus is rather narrowly on formal property rights, as distinguished from informal, legally unrecognized rights and customs covering access to landed property like those that prevailed until very recently in the Iraqi countryside. Symbolizing the disjunction in legal norms that can occur are the Tribal Disputes Regulations that were first imposed by British authorities in 1918 and then incorporated in the Iraqi Constitution under the monarchy. In having found it administratively necessary to exclude the countryside from the purview of the national law (in spite of considerable agitation against this in the cities), as one authority notes, "Iraq would thus remain legally subject to two norms -- one for the cities and one for the tribal countryside".[22]

Thus there is an alternative possibility deserving consideration, that the role of corporate communities in Mesopotamian agriculture continued to remain a substantial one not only through the second millennium but long beyond it. Their numbers and influence on the course of events were surely subject to fluctuations, but while individually weak such communities seem collectively almost indestructible. They were, in short, both regularly undermined and continually generated anew by a larger context of ecological uncertainty, pressures toward subordination to urban credit and power and resistance to those pressures, and the cyclical coalescence and decay of political and administrative controls imposed by successive dynasties. This alternative reconstruction implies that there may have been only the appearance of a progressive, cumulative decline in the importance of the communal sector after the third millennium.[23] We could largely account for that appearance by reference to the likelihood of an increasing separation between a rigid and artificial legal tradition embodying urban-based definitions of rights to property and the quite different usages with regard to land that continued to be exercised in the villages.

It is the resilience of the system and not its individual components which is critical. Individual villages and even groups of villages were at all times at risk of being more or less forcibly incorporated into larger estates and otherwise losing their corporate character. But we must not lose sight of the inherent biases of the documentary material. It was natural for urban officials or notables to preserve records of transactions in which they took over rights and titles that earlier had been communally held. Such is the case with a group of Middle Assyrian tablets that Diakonoff and others have discussed.[24] But while he stresses the "archaic nature" of a form of land ownership by extended family groups, with both periodic reallocation of plots and provision for substitutability of plot boundaries upon transfer, this combination of features comes persuasively close to constituting an antecedent of the *musha'* system -- a system, it will be recalled, that was still widespread and vigorous more than three millennia after the time of the documents. Much less to be expected is the presence in urban archives of documents recording the reversals of this process, but that emphatically cannot be taken to mean that such reversals did not occur. Included among them, for example, would have been the slow loss of effective control over their outlying possessions by landowning urban families subject to downward mobility for any reason, not to speak of the erosion on a greater scale affecting a dynasty in the years of its decadence.[25]

The central argument of this paper concerns the probability of rural forms of organization that are not adequately attested in texts. The predisposition of cuneiform sources to focus primarily on urban concerns, and on legally rather than customarily defined rights and obligations, has already been suggested. But incautiously sweeping though the discussion may already have been, it is perhaps worthwhile in conclusion briefly to extend the same approach to social statuses. Just as there is likely to have been a bifurcation between the customary basis of rural tenure and the refracted view of tenure obtained through legal prisms, so the features of individual status that are highlighted in cuneiform sources are likely to be those that conform to the perceptions and limitations -- the 'class view' or even 'ideology', for those who prefer that formulation -- of the groups responsible for ordering and writing the tablets. Characteristic of those perceptions and

limitations, it may be suggested, was an overemphasis on criteria of status that articulated closely with the activities and powers of state institutions in an urban setting, and a corresponding underemphasis on less institutionally defined criteria that prevailed among the agricultural peasantry beyond the city walls.

Consider in this light the perennial problem of the coupling of *awīlu* and *muškēnu*. The former is ordinarily identified as a full, relatively high status member of an urban community while definitions of the latter specify not merely his low status and limited civic rights but also obligations of state or temple servitude. These correlates of status may indeed adequately reflect the entire body of known textual references to both terms. But neither definition includes any reference to a fundamental reality of Mesopotamian life in every historic period -- the great social gulf between urban institutions and their rural counterparts. It may well be that this was the way urban elites would have seen the world; for them, what lay beyond the walls probably was mainly more ignorant and primitive, sometimes dangerous, and always potentially exploitable. But must modern scholarship maintain the same skewed perception?

? this assumption valid?

drawn to heavily from Marx

One obvious alternative begins with the realization that the requisite for a *muškēnu* of dependent service within state institutions could not have applied uniformly (if at all) to the entire population of full time cultivators. It would have been far more frequently imposed, of course, on villagers who had been more or less involuntarily brought within the routinely recorded scope of urban-dominated economic or administrative activities than on the surely much larger proportion of the peasant population to whom (as individuals) there are few or no textual references. But more generally, there is very likely to have been a close association of the term *muškēnu* not merely with inferior status but with the outlook and cultural patterns that particularly characterized rural life. If so, apart from presently recognized connotations of the term, it also surely would have had connotations rather like those of modern Iraqi "tribesmen", involving participation in a separate, kin-based, largely extra-urban web of customary allegiances.

My colleague John A. Brinkman has pointed out to me, on the other hand, that a case could conceivably be made for an almost exactly contrary hypothesis. The *awīlu* might have been seen as an individual deriving his rights and revenues from land that he at least participated in cultivating, and the *muškēnu* as a committed urbanite although of inferior status. According to the CAD, he observes in briefly sketching this position,

> the customary opposition in Old Babylonian and earlier times is between the palace/king and the *muškēnu* (primarily an urban opposition) and not between the *awīlu* and the *muškēnu* (which is attested only once or twice outside the Codex Hammurabi and then only in the Old Babylonian period). These terms are not used for designating social classes after Old Babylonian times; *muškēnu* is then used as a synonym for *lapnu*, 'poor', in a poor-rich comparison (*lapnu-šarû*), while *awīlu/amīlu* survives as a socio-economic term almost entirely in its abstract form *amīlūtu*, which refers to the person and status of a slave, commonly in an agricultural context. A rather unexpected context for an urbanite?[26]

A definitive choice between these two (and perhaps other) alternatives is unnecessary for present purposes, although the former is certainly easier to reconcile with preponderant concentrations of wealth and status in the cities. Both are at least responsive to the wide ramifications of urban-

rural differences in ancient just as in modern Mesopotamia. Both hypothesize corresponding differences in customary usage, only partly or indirectly reflected in most textual references to status. Both seek ways to transcend a strictly scribal viewpoint, even though the best available evidence for doing so will always consist of the material residues of that viewpoint in the form of texts. And both imply that *textual* progress along any of these lines is likely to be more apparent than real unless it is linked to continuing efforts at a generalizing, *contextual* clarification of the relations between cities and their hinterlands.

Already during the formative epoch of Assyriology a great pioneer in modern history and social theory called attention to what he termed "die Scheidung von Stadt und Land". "Mann kann sagen", he continued, "dass die ganze ökonomische Geschichte der Gesellschaft sich in der Bewegung dieses Gegensatzes resümiert".[27] There he broke off, unable at the time to develop the theme further. Perhaps now, more than a century later and with studies of the ancient Orient in full maturity, it should be taken up again on his behalf.

A nod to Diakoff w/ Marx (steeped in Marx

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ZU DEN METAPHERN IN EINEM LIED DER "HEILIGEN HOCHZEIT"

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S.N. Kramer, der den sumerischen Text UM 29-16-37 veröffentlichte und in einer Gruppe weiterer Texte zum Ritual der sog. "heiligen Hochzeit" bearbeitete,[1] rechnete diese kurze Dichtung zu den Liedern über die "voreheliche Liebeswerbung" ("premarital courting"). Er hat die Schwierigkeiten in der Interpretation der zweiten, symbolisch anmutenden Hälfte des Textes klar gesehen und vermutete dabei eine sexuelle Symbolik der mit den Worten ^{na_4}š u b a, "š u b a-Stein" und u r_{11} (URU_4 = APIN), "pflügen" gebildeten Ausdrücke.[2]

Wohl trifft seine Deutung des Textes im ganzen zu. Die erste Hälfte der Dichtung (Z. 1-22) trägt einen allgemein-alltäglichen Charakter: Es wird in diesen Zeilen die Liebesneckerei der Göttin Inanna/Innin mit ihrem Geliebten Amaušumgalanna (Dumuzi) beschrieben. Die zweite Hälfte (Z. 23-45) ist weniger verständlich, vor allem wegen der kaum durchsichtigen Wendungen, die verschiedene Handlungen andeuten. Diese Handlungen beziehen sich alle irgendwie auf den š u b a-Stein.

Auf den ersten Blick hat man den Eindruck, die zweite Hälfte des Textes hängt nicht unmittelbar mit der ersten zusammen,[3] obwohl die Z. 23 f. eindeutig als Verbindung oder Überführung dienen, sie erklären nämlich, was geschah und was noch kommen wird:[4]

"Die Worte, die gesprochen wurden, sie sind Worte der Begierde, mit dem Streit kommt Begierde im Herzen auf."

Die zweite Hälfte des Textes ist in Metaphern und Wortspielen aufgebaut, deren nähere Betrachtung -- die Entzifferung ihres Sinnes -- erlaubt uns erst, die inneren Zusammenhänge der beiden Textteile aufzudecken.

Wenden wir uns zuerst den Z. 25 f. zu, die das Thema der š u b a-Steine einführen:[5]

^{na_4}š u b a - k e_4 ^{na_4}š u b a - k e_4 ^{na_4}š u b a n a - u r_{11} - r u

^{d}a m a - u š u m g a l - a n - n a ^{na_4}š u b a - k e_4 ^{na_4}š u b a n a - u r_{11}

r u

S.N. Kramer gibt zu dieser Stelle die folgende Übersetzung:[6]

"He of the š u b a-stones, he of the š u b a-stones, plows the š u b a-stones.

Amaušumgalanna, he of the š u b a-stones, he of the š u b a-stones, plows the š u b a-stones."

Diese Übersetzung lässt sich ohne weiteres etwas verbessern. Die Verwendung des Ergativs (Agentivs),[7] ferner die ganz folgerichtige grammatische Unterscheidung zwischen dem "Subjekt" und dem "Objekt" der Handlung (die beide mit dem Wort ^{na_4}š u b a ausgedrückt sind) als ^{na_4}š u b a - k e_4 und ^{na_4}š u b a, veranlässt uns, diese Worte hier für zwei verschiedene Begriffe zu halten. Die